

Book 5

First legal analysis under Regulation (EU) 2023/1114 (MiCA)

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Osnias documentation:

Book 1	Architecture	https://www.osnias-clearing.com/architecture/ https://www.osnias-clearing.com/architecture/Osnias_Clearing_Functional_Architecture.pdf
Book 2	Security	https://www.osnias-clearing.com/security/ https://www.osnias-clearing.com/security/Osnias_End_User_Security_Audit_Readiness.pdf
Book 3	Osnias-ID	https://www.osnias-clearing.com/osniasid/ https://www.osnias-clearing.com/osniasid/Osnias-

		<u>ID White Paper Release 2.0-HAL.pdf</u>
Book 4	Clearing Rules & Regulatory and Technical Review	<u>https://www.osnias-clearing.com/rules/</u> <u>https://www.osnias-clearing.com/rules/Livre-4-Osnias_Clearing_Regles_1-1-FR.pdf</u>
Book 4 Annex	Clearing cycle	<u>https://www.osnias-clearing.com/rules/Livre-4-Annexe-A-Calendrier-FR.pdf</u>

1- Response to the email of 22 September 2026

1.1 Purpose and methodology of this analysis

Dear Sir or Madam,

Further to your email of 22 September 2026, in which the AMF Innovation & Digital Finance team invited us to conduct a first legal analysis of Osnias Clearing's activities and to provide further details on the project, we hereby submit this memorandum.

- The purpose of this document is to provide a factual description of the Osnias Clearing protocol, its clearing tokens, its technical mechanisms and the allocation of functions among the various network participants.
- For each item reviewed, the methodology is as follows: technical fact → functional effect → possible legal qualification → point remaining for discussion with the AMF.
- This document does not modify or reinterpret the protocol's characteristics on the basis of a presumed regulatory qualification. The technical invariants are described as set out in the published documentation and in the architecture currently under development. The legal analysis is then conducted on the basis of those facts.

As the project remains in the development and testnet phase, this analysis constitutes a first legal assessment intended to serve as the basis for the discussion proposed in your email.

The tokens referred to as “ORUSD” and “OEURO” in our request of 2 September 2026 are now referred to generically as “clearing tokens”. This change in terminology does not alter their functionality.

This first analysis was prepared by the project founder, who is not a lawyer. It is based on the published technical documentation (Books 1 to 4 and Annex A to Book 4, referenced in Annex 1). The legal references cited are intended to be confirmed by specialised legal counsel.

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1. Executive summary

The project. Osnias Clearing is a multilateral clearing infrastructure for businesses, currently under development on testnet. The protocol provides for clearing tokens tied to a specific clearing chamber, currency and cycle, created 1:1 against escrow, transferable among admitted members during the cycle, and then included in clearing and settlement at the close of the cycle.

Token qualification. Based on these technical and functional characteristics, our preliminary analysis considers that the clearing tokens fall within the general definition of a crypto-asset under Article 3(1)(5) of MiCA. Their

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precise legal category remains open and must be assessed in light of the rights attached to the unit, its backing, the role of node operators and the protocol invariants.

Allocation of functions. The node operator is responsible for the escrow, MINT/BURN authority over its own accounts, the relationship with its end-users and settlement. Osnias remains the provider of the common technical infrastructure: registry, clearing calculation, Temporal Oracle and fail-closed protocol controls, without holding end-user funds or private keys.

Points for discussion with the AMF. The composition of the escrow, legal qualification of the tokens, identification of the potential issuer, the multi-node nature of a chamber, the legal implications of the BURN invariant and the enforceability of the escrow in insolvency proceedings are presented as characteristics or consequences to be assessed, without presuming any modification of the protocol.

Request. This memorandum is submitted as the factual and legal basis for a second discussion with the AMF and, if the AMF considers it useful, with the relevant AMF or ACPR teams.

2. Detailed description of the project

2.1 Current status

- “Osnias Clearing” does not currently designate an incorporated legal entity. The domain name, documentation and technical assets are held by Mr Denis Bouzon, founder and project lead.
- The smart contracts are deployed experimentally on Sei testnet and Ethereum Sepolia. No service is currently operated commercially or offered to the public, and no token sale is being conducted or planned.
- A governance entity (a Swiss-law association of the Verein type, provisionally named “Osnias Clearing Consortium”, with no governance token) will be incorporated before any commercial deployment. The choice of jurisdiction for node operations forms part of the present regulatory process.

2.2 Functional architecture — Sei clearing registry and external escrow

The Osnias architecture is based on a structural separation between, on the one hand, the canonical clearing registry maintained on Sei and, on the other hand, the escrow, which remains external to that registry.

Clearing tokens are recorded and circulate on Sei. Each clearing account is identified by an Osnias-ID encoding, in particular, the network (KK), node (NNN), currency (MMM) and cycle (WW). A clearing chamber therefore groups accounts belonging to the same currency and the same cycle.

The escrow constitutes a layer separate from the clearing registry. Depending on the architecture selected by the node operator, it may be maintained:

- on an EVM infrastructure, including Ethereum or Arbitrum, through an escrow smart contract holding eligible assets, including authorised EMTs such as USDC or EURC;
- or within a CeFi infrastructure, through a bank escrow account denominated in official currency and operating through the SEPA rail, connected to the protocol via CCIP.

This separation is an architectural invariant: the clearing registry and escrow are neither merged nor hosted on the same technical layer. Their consistency is ensured by the chamber's 1:1 conservation invariant, under which the aggregate quantity of clearing tokens must match aggregate eligible escrow within the same chamber, currency and cycle perimeter. Escrow integrity is also monitored on a node-by-node basis.

Token circulation remains restricted to the authorised chamber perimeter. P2P transfers are permitted only between registered members, and use of the tokens on DEXs, CEXs, AMMs, DeFi protocols or liquidity pools is excluded by the architecture. No remuneration or yield is attached to token balances.

At the close of the cycle, positions are calculated per member and then aggregated per node. Net balances between nodes are settled by the node operators, while Osnias retains its role as registry operator, clearing-calculation engine and protocol-control layer.

The separation may therefore be summarised as follows:

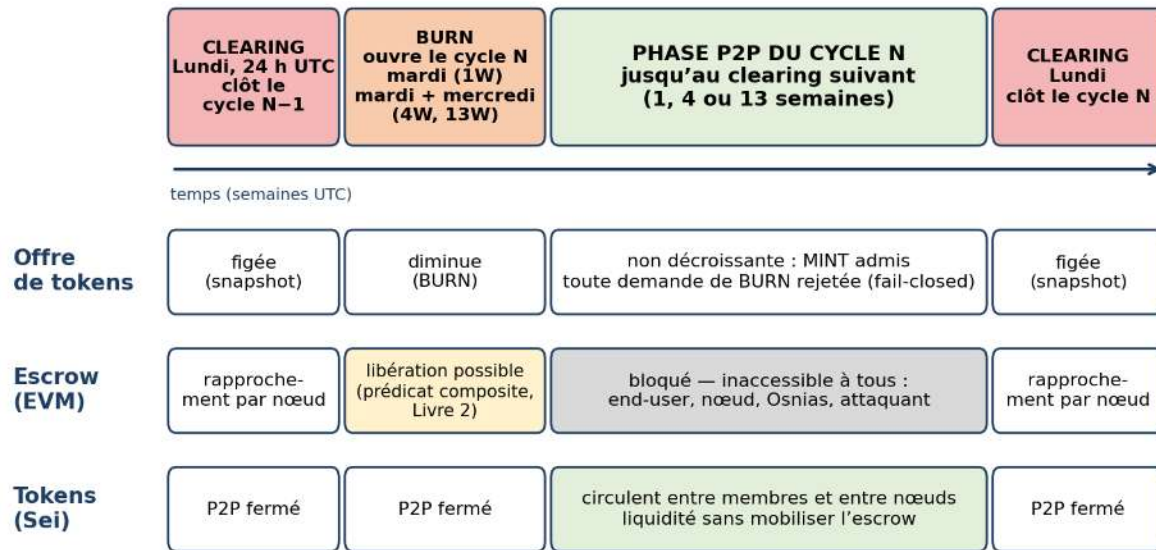
- Sei = clearing registry and clearing tokens
- EVM or CeFi/SEPA = external escrow
- 1:1 invariant = consistency link between the two layers

2.3 Clearing-cycle calendar and sequencing

The calendar is defined in Annex A to Book 4 (DOI 10.5281/zenodo.22938745). It is calculated exclusively in UTC weeks, starting Monday 21 September 2026. Three cycle profiles are defined: 1W (weekly clearing), 4W and 13W. A year comprises 52 weeks, 53 every seventh year and 54 every forty-ninth year, in order to keep 13W cycles aligned with the solstices and equinoxes.

- Monday: 24-hour clearing window closing the previous cycle (P2P closed, statements, dispute window, settlement).
- BURN: opens the new cycle for one day (Tuesday) in 1W and two days (Tuesday and Wednesday) in 4W and 13W. Any BURN request submitted outside this window is rejected.
- P2P phase: opens only after the BURN window. Token supply is non-decreasing during this phase (MINT permitted, no BURN); escrow remains locked on the EVM side and inaccessible to any party, while its representation circulates on Sei.

Séquencement d'un cycle de clearing Osnias



Invariants : adossement 1:1 de la chambre à tout instant · BURN uniquement dans la fenêtre qui ouvre le cycle · P2P ouvert seulement après la fenêtre de BURN

Figure 1 – Osnias clearing-cycle sequence

2.4 Allocation of roles, funds and keys

Actor	Role	Funds	Keys
End-user (business member)	Admitted under contract with its node; initiates and signs its transfers	Owner of escrowed funds	Sole holder of its seed phrases: EVM signer, Sei authorisation and cold destination address, generated from independent seeds (Book 2)
Node operator	Responsible for the escrow smart contract or bank escrow account, creation and destruction of tokens for its own accounts, clearing and settlement; client relationship, AML/CFT, regulatory status	Escrow operated under its responsibility, with no redirection power	No end-user keys; MINT/BURN key restricted to its own accounts (KK, NNN pair)
Osnias (then governance entity)	Registry, clearing calculation, Temporal Oracle, fail-closed protocol controls	None	No keys over funds; no unilateral administrative key (upgrades subject to shared governance with execution delay)

In the EVM branch, release of escrowed funds is governed by a composite predicate (Book 2): end-user authorisation in a second independent security domain, a single-use proof and a destination restricted to the pre-registered cold address. No single authority — node, Osnias, upgrade authority or emergency role — can redirect the funds.

3. Legal qualification analysis of the clearing tokens

3.1 Functional and technical invariants of the clearing token

1. One token per chamber, currency and cycle

Each clearing token belongs to a defined chamber, currency and cycle. Registries are segregated by currency and by cycle. Tokens belonging to different chambers, currencies or cycles cannot be mixed, merged or diluted.

Token naming by currency and cycle

Cycle	W1	W4	W13
Euro	OEuro1	OEuro4	OEuro13
USD	ORUsd1	ORUsd4	ORUsd13

2. Closed to third-party smart-contract use

The token is restricted by its code and protocol perimeter from use as a general-purpose asset in third-party smart contracts. It cannot be used in a DEX, CEX, AMM, liquidity pool, lending protocol, farming, staking or yield mechanism.

3. Swap prohibited

The clearing-token contract does not provide a permitted mechanism to exchange the token against another token. Swaps are excluded both by the code path and by the token's functional perimeter.

4. Subject to the cycle Temporal Oracle

The token is subject to states defined by the Temporal Oracle. The Oracle determines, in particular, the MINT, BURN, P2P and clearing windows. During the 24-hour clearing window, P2P is closed. Balances are frozen to establish the reference snapshot used for position calculation, node aggregation and cycle netting.

5. P2P restricted to registered Osnias members

A P2P transfer is permitted only between addresses belonging to the Osnias network and mapped to a valid Osnias-ID in the registry. A Sei 0x address that is not mapped to a valid Osnias-ID is rejected on a fail-closed basis.

6. Non-cross-chain token

The clearing token remains on Sei. The architecture contains no LayerZero, bridge, wrapping or

migration mechanism allowing the clearing token to move to another chain. By design, it is not transportable to another network.

7. 1:1 chamber backing invariant

For each chamber, the aggregate quantity of clearing tokens must correspond to aggregate eligible escrow within the same chamber, currency and cycle perimeter.

8. Fail-closed by default

If there is any inconsistency in Osnias-ID, currency, cycle, registry, escrow or oracle state, the operation is rejected.

Clearing tokens are closed-registry tokens: non-exchangeable, non-cross-chain and non-programmable outside the protocol, restricted to one chamber, one currency, one cycle and a set of members identified by Osnias-ID under the same registry root.

- MMM: ISO 4217 currency code
- WW: number of weeks — 1, 4 or 13

3.2 Qualification as a crypto-asset

Article 3(1)(5) of MiCA defines a crypto-asset as a digital representation of a value or of a right that is able to be transferred and stored electronically using distributed ledger technology or similar technology.

Clearing tokens are digital representations of value, stored and transferred on a distributed ledger. Their transferability is restricted to addresses admitted to the same chamber, and trading is excluded by the architecture. These restrictions constrain transferability but do not eliminate it: our conclusion is that the clearing tokens are crypto-assets within the meaning of MiCA.

At a preliminary stage, none of the exclusions in Article 2(4) appears applicable: the tokens do not confer rights attached to a financial instrument, are not deposits and are not unique and non-fungible.

3.3 Category: an open legal qualification

Technical and functional fact. Each clearing token is tied to a single chamber, a single currency and a single cycle. It is created against escrow of equivalent value under the protocol's 1:1 invariant and destroyed only during the BURN window defined by the Temporal Oracle. In the EVM branch, the escrow may consist of EMTs already issued and authorised, such as EURC or USDC.

Possible legal qualification. These characteristics may potentially be assessed against several MiCA categories, including EMTs, ARTs or the residual category of other crypto-assets. Economic backing by an existing EMT is a relevant fact, but does not by itself determine the legal qualification of the clearing token. Classification must result from the full set of rights and obligations attached to the unit and from the actual organisation of its issuance, circulation and destruction.

Point for discussion with the AMF. We do not presume the applicable category. We wish to discuss the possible qualification with the AMF on the basis of the protocol's documented operation, without modifying the invariants on which it is built.

3.4 Identification of the issuer

Technical and functional fact. The node operator is responsible for the escrow provided by the member, holds the authority to initiate a MINT and receives the BURN instruction for its own clients, and executes release of the escrow in accordance with the protocol rules.

Osnias Clearing contracts with the node operators. It receives no client funds and has no access whatsoever to the seed phrases or private keys of client wallets.

Possible legal qualification and point for discussion. On these facts, the node operator is the natural candidate for qualification as issuer. This assessment must nevertheless be considered in light of the multi-node operation of a chamber and the legal category ultimately applicable to the clearing token.

4. Analysis of activities

4.1 Osnias activities

Service (MiCA)	Analysis	Preliminary conclusion
Custody and administration on behalf of clients (Art. 3(1)(17))	Osnias holds no keys and has no power over escrow; no unilateral administration function	Not characterised
Transfer services (Art. 3(1)(26))	Transfers are initiated and signed by the end-user; the protocol validates conditions and rejects on a fail-closed basis without acting on instruction	Not characterised; the cycle-opening fee order must be initiated under node authority
Exchange of crypto-assets for funds or other crypto-assets	No conversion; 1:1 MINT and BURN are attributable to the issuer	Not characterised
Operation of a trading platform (Art. 3(1)(18))	No order book, price formation or matching; clearing of obligations already entered into	Not characterised

4.2 Node-operator activities

- Issuance/destruction authority: each node operator exercises MINT/BURN authority over its own accounts, subject to the protocol's fail-closed controls. The legal qualification of this activity depends on the category applicable to the token and on the regulatory status applicable to the node operator.
- Escrow responsibility: end-user control of keys and the inability to redirect funds limit, without necessarily excluding, a potential qualification as custody of crypto-assets on behalf of clients.
- EMT transfers and settlement of net balances: interaction with payment-services regulation must be assessed (Directive (EU) 2015/2366).

- AML/CFT obligations and the Transfer of Funds Regulation (Regulation (EU) 2023/1113) in relation to transfers between members.

4.3 Clearing and settlement

Multilateral netting and settlement of net balances may fall within the oversight of payment systems and payment arrangements independently of MiCA, including Directive 98/26/EC and the French Monetary and Financial Code (in particular Articles L. 330-1 and L. 141-4), as well as the Eurosystem oversight framework for payment instruments, schemes and arrangements (PISA).

5. Legal characteristics to be assessed against the regulatory framework

5.1 Composition of the escrow

Technical and functional fact. In the contemplated EVM branch, escrow consists of EMTs authorised under MiCA, including EURC for the euro chamber and USDC for the US-dollar chamber, held in escrow smart contracts on an EVM network. The 1:1 backing is verifiable on-chain at chamber level and monitored node by node.

Possible legal qualification and point for discussion. The regulatory nature of these escrow assets and their use as the backing supporting the 1:1 invariant must be assessed under the rules applicable to the legal category ultimately assigned to the clearing token. The CeFi branch based on a SEPA bank escrow account remains a separate architecture documented by the project.

5.2 BURN window

Technical and functional fact. BURN is authorised only at the start of each cycle, during the window defined by the Temporal Oracle. Any request submitted outside that window is rejected on a fail-closed basis. During the P2P phase, no BURN is permitted: clearing-token supply is non-decreasing and the escrow remains locked until the next BURN window opens. This rule is a protocol invariant, documented in the white paper and implemented in the logic of the Temporal Oracle and the token.

Possible legal qualification and point for discussion. This memorandum proposes no modification to this invariant. The question submitted to the AMF is the regulatory qualification applicable to a clearing token exhibiting this documented functionality.

5.3 Chamber token and multiple node operators

Technical and functional fact. A single chamber may include several node operators. Each node may MINT/BURN only for its own accounts, but a unit may subsequently be held, within the authorised chamber perimeter, by a member of another node until settlement. The protocol maintains traceability through Osnias-ID, including the NNN field.

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Possible legal qualification and point for discussion. This architecture raises the question of identifying the legal issuer of a fungible unit circulating within a multi-node chamber. We wish to discuss this point with the AMF on the basis of the technical and contractual responsibilities described above.

5.4 Insolvency proceedings affecting a member

Functional fact. Escrowed funds are allocated, for the duration of the cycle, to settlement of the net debit position in accordance with the protocol rules. Insolvency law may nevertheless affect the enforceability or realisation of that allocation depending on the member's legal situation.

Possible legal qualification and point for discussion. Treatment of the escrow and netting in insolvency proceedings must be assessed under the applicable law, including the French Commercial Code and, where relevant, applicable settlement-finality regimes. Annex 3 sets out the contemplated dedicated-purpose clause for contractual documentation purposes.

5.5 Technical governance and administrative keys

Current technical fact. During the testnet phase, administrative keys for the experimental contracts are held by the project founder.

Target architecture. Before any commercial deployment, the technical assets are intended to be transferred to the governance entity; node operators will retain MINT/BURN authority over their own accounts, and no unilateral administrative key may allow Osnias to dispose of end-user funds. Upgrade governance must be formalised before mainnet.

6. Request for discussion

On the basis of the technical and functional facts described above and our preliminary analysis, we would like to discuss the following points with the AMF:

- the legal category applicable to the clearing tokens in light of their documented characteristics, without presuming any modification of the protocol;
- the regulatory treatment of the 1:1 escrow, depending on the branch selected, consisting either of authorised EMTs on an EVM network or official currency held in a bank escrow account;
- the legal implications of the BURN invariant, which limits BURN to the opening window of each cycle;
- identification of the legal issuer in a multi-node chamber in which each node operator can MINT/BURN only for its own accounts.

If the AMF considers it useful, we would be grateful for an introduction to the relevant AMF teams and, where appropriate, the ACPR. We remain available to provide any clarification or a demonstration of the testnet.

Annex 1 – Reference documentation

Document	Purpose	Reference
Book 1 – Functional Architecture	Architecture; separation of clearing and settlement	HAL hal-05752756; DOI 10.5281/zenodo.22807190
Book 2 – Security Audit Readiness	End-user security, keys, release predicate	HAL hal-05756811; DOI 10.5281/zenodo.22870678
Book 3 – Osnias-ID, Release 2.0	Identity, topology, networks, nodes, currencies, cycles	HAL hal-05743547; DOI 10.5281/zenodo.22704626
Book 4 – Clearing Rules, Release 1.1	Clearing rules, roles, invariants, controls	HAL hal-05760527; DOI 10.5281/zenodo.22922199
Book 4 – Annex A	1W, 4W and 13W cycle calendar; spreadsheet	DOI 10.5281/zenodo.22938745

Presentation pages: www.osnias-clearing.com (Architecture, Security, Osnias-ID, Rules).

Annex 2 – Netting as a civil-law mechanism

The set-off implemented at the close of each cycle is not a legal innovation. Established in the French Civil Code of 1804 (former Articles 1289 to 1299) and recodified by Ordinance No. 2016-131 of 10 February 2016 in Articles 1347 to 1348-2, it extinguishes reciprocal obligations. Contractual set-off under Article 1348-2 allows parties to agree to extinguish present or future obligations. Through each member's adherence, the network Rulebook organises multilateral netting at the clearing date; Osnias calculates that netting without interposing itself as counterparty, by novation or as a central counterparty. Only the technical implementation — a distributed, timestamped and verifiable ledger — is new.

Annex 3 – Exclusive allocation clause for escrowed funds

X.1 Funds escrowed by the Member are allocated exclusively and irrevocably, for the entire duration of the current cycle, to settlement of the Member's net debit position vis-à-vis the creditors of the clearing chamber.

X.2 Such funds may be released, transferred or returned only in accordance with the Osnias protocol rules: (i) through settlement at the clearing date, on the basis of the finalised clearing statement; or (ii) through return to the Member during the BURN window of the following cycle.

X.3 No instruction from the Member, node operator or any third party, and no event external to this agreement, may cause release of the funds outside the mechanisms provided in Article X.2, to the fullest extent permitted by law.

X.4 The escrow arrangement shall not execute any transaction involving the funds unless such transaction results from the protocol.